

Know Your Rights: Police Encounters

What you can say, what you must do, and what you can refuse. Know this before you need it.

NOTE: US rights. Laws vary by state. Educational only — not legal advice. If arrested, request a lawyer immediately and say nothing else.

1. Traffic Stops

- Pull over safely. Keep hands visible on the steering wheel at all times.
- You **MUST** provide: license, registration, and proof of insurance.
- You do **NOT** have to answer questions. Say: "I am not answering questions without a lawyer."
- You can refuse a vehicle search. Say: "I do not consent to a search."
- If they search anyway — do **NOT** resist physically. Document everything afterward.

2. Pedestrian Stops

- Virginia & Maryland: you are **NOT** required to show ID unless you have been placed under arrest.
- If stopped: "Am I free to go?" If yes — leave calmly. If no — you are detained.
- If detained: "I am invoking my right to remain silent. I want a lawyer."
- Do not run. Do not physically resist even if the stop is unlawful.
- After: write down time, location, badge number, exact words — everything you remember.

3. Home Searches

- Police generally need a warrant to enter your home.
- If they knock: "Do you have a warrant?" You do **NOT** have to open the door.
- If they have a warrant — read it. It specifies exactly what they can search.
- If they claim emergency — do not block entry but say clearly: "I do not consent to this search."
- Do not answer questions during a search. Wait for your lawyer.

4. If You Are Arrested

- Say: "I am invoking my right to remain silent." Then say **NOTHING** else.
- Say: "I want a lawyer." Repeat this if questioned. Do not waive this right.
- Do not resist physically even if you believe the arrest is unlawful.
- Do not sign anything without your lawyer.
- If you cannot afford a lawyer, one must be appointed at no cost.

What to Document After Any Police Encounter

[] Date and exact time	[] Location (full address if possible)
[] Officer name and badge number	[] Patrol car / unit number
[] Exact words spoken (write immediately)	[] What was done (search, pat-down, etc.)
[] Names and contacts of witnesses	[] Photos of injuries

[] Whether you received a ticket or receipt

[] File FOIA for body cam footage within 30 days

Scripts — What to Say

Invoke silence	"I am invoking my right to remain silent."
Refuse search	"I do not consent to a search."
Request lawyer	"I want a lawyer. I will not answer questions without one."
Clarify detention	"Am I free to go? Am I being detained?"
As a witness	"I am a witness. I am not interfering. I am recording."
NOTE: If you experience misconduct, contact IRN: IRNVP@pm.me — we help file complaints, request records, and connect you with legal support.	